

SENATE No. 2655

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, October 20, 2025.

The committee on Senate Ways and Means to whom was referred the House Bill making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 4615); reports, recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text of Senate document numbered 2655. (Direct Appropriations: \$2,302,196,732.00 -- This legislation makes \$2,302,196,732 in direct fiscal year 2025 appropriations, with a net cost to the Commonwealth of \$795,714,639 after federal financial participation.)

For the committee,
Michael J. Rodrigues

SENATE No. 2655

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2 are hereby
3 appropriated from the General Fund or the Transitional Escrow Fund established in section 16 of
4 chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless
5 specifically designated otherwise in this act or in those appropriation acts, for the several
6 purposes and subject to the conditions specified in this act or in those appropriation acts, and
7 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
8 2025. These sums shall be in addition to any amounts previously appropriated and made
9 available for the purposes of those items. These sums shall be made available through the fiscal
10 year ending June 30, 2026.

11 SECTION 2.

12 DISTRICT ATTORNEYS

13 Suffolk District Attorney's Office

14 0340-0100 Suffolk District Attorney.....\$700,000

15 District Attorneys' Association

16	0340-8908	District Attorneys' Wide Area Network.....	\$90,663
17	EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE		
18	1595-6153	Communications Access Trust Fund Transfer.....	\$12,500,000
19	EXECUTIVE OFFICE OF EDUCATION		
20	Department of Elementary and Secondary Education		
21	1596-2422	School Meals.....	\$12,000,000
22	Education and Transportation Fund... 100%		
23	EXECUTIVE OFFICE OF ENERGY AND ENVIRONMENTAL AFFAIRS		
24	Office of the Secretary		
25	1599-0093	Clean Water Trust Contract Assistance.....	\$6,779,246
26	EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES		
27	Office of the Secretary		
28	4000-0700	MassHealth Fee for Service Payments.....	\$2,046,164,359
29	Department of Public Health		
30	4590-0915	Public Health Hospitals.....	\$18,500,000
31	EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY		
32	Department of State Police		

33 8100-1001 Department of State Police.....\$3,500,255

34 Department of Correction

35 8900-0001 Department of Correction Facility Operations.....\$7,184,865

36 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
37 provide for an alteration of purpose for current appropriations, and to meet certain requirements
38 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
39 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
40 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
41 section, for the several purposes and subject to the conditions specified in this section, and
42 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
43 2025. Except as otherwise stated, these sums shall be made available through the fiscal year
44 ending June 30, 2026.

45 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

46 Department of Revenue

47 1233-1818 For fiscal year 2023 and fiscal year 2024 payments due to cities and towns
48 pursuant to section 5 of chapter 64N of the General Laws.....\$1,250,000

49 Marijuana Regulation Fund...100%

50 Reserves

51 1599-1214 For a reserve for expansion, upgrades or enhancements to staffing,
52 operations or infrastructure for new and existing facilities that treat men with an alcohol or

53 substance use disorder under sections 1 and 35 of chapter 123 of the General Laws; provided,
54 that the secretary of administration and finance may transfer funds from this item to state
55 agencies as defined in section 1 of chapter 29 of the General Laws.....\$14,000,000

56 OFFICE OF THE COMPTROLLER

57 Executive Office of Housing and Livable Communities

58 1595-0604 For an operating transfer to the Housing Preservation and Stabilization
59 Trust Fund established in section 60 of chapter 121B of the General Laws.....\$75,000,000

60 MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

61 1596-2527 For the cost of snow and ice removal services incurred by the
62 Massachusetts Department of Transportation; provided, that funds in this item may be
63 transferred to the Massachusetts Transportation Trust Fund established in section 4 of chapter 6C
64 of the General Laws \$60,727,344

65 Education and Transportation Fund...100%

66 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

67 Office of the Secretary

68 4000-0010 For direct supports to reproductive health care providers to maintain
69 continuity of access to services at risk of federal funding reductions including, but not limited to,
70 Medicaid reimbursements.....\$5,000,000

71 Department of Transitional Assistance

4400-0709 For operational enhancements at the department of transitional assistance in response to upcoming changes to the Supplemental Nutrition Assistance Program; provided, that the department shall expend funds for enhancements including, but not limited to, information technology and infrastructure improvements to reduce the commonwealth's payment error rate; provided further, that at the direction of the commissioner of transitional assistance, funds may be transferred from this item to item 4400-1000 of section 2 of the general appropriation act for fiscal year 2026 and fiscal year 2027; provided further, that not later than March 15, 2026, the department shall submit a report to the joint committee on children, families and persons with disabilities and the house and senate committees on ways and means detailing strategies for reducing payment error rates and summarizing departmental responses to recent policy changes to the Supplemental Nutrition Assistance Program; and provided further, that funds appropriated in this item shall be made available until June 30, 2027.....\$10,000,000

EXECUTIVE OFFICE OF EDUCATION

Department of Higher Education

1596-2528 For a reserve to provide financial assistance to Massachusetts students enrolled in and pursuing a program of higher education at any public institutions of higher education in the commonwealth; provided, that funds shall be expended to restore financial aid allocations to public institutions of higher education in fiscal year 2026 at an amount not less than that allocated in fiscal year 2025; provided further, that funds shall be expended to increase awards for MassGrant recipients in fiscal year 2026 at an amount not less than that allocated in fiscal year 2025; provided further, that funds shall be expended to increase award allowances for

94 Pell Grant recipients in fiscal year 2026 at an amount not less than that allocated in fiscal year
95 2025; provided further, that funds shall be expended to restore the allowance of up to \$1,200 per
96 academic year, adjusted by number of credits, for books, supplies and other expenses for
97 students whose household income is at or below 125 per cent of the standard median income and
98 who are attending a community college program pursuant to section 5B of chapter 15A of the
99 General Laws; provided further, that funds may be expended for programs or activities during
100 summer months; and provided further, that at the discretion of the secretary of education, funds
101 may be transferred from this item to items 7070-0065, 1596-2414 and 1596-2501 of the general
102 appropriation act.....\$18,300,000

103 Education and Transportation Fund...100%

104 SECTION 2B. To provide for supplementing certain intragovernmental chargeback
105 authorizations in the general appropriation act and other appropriation acts for fiscal year 2025,
106 to provide for certain unanticipated intragovernmental chargeback authorizations, to provide for
107 an alteration of purpose for current intragovernmental chargeback authorizations and to meet
108 certain requirements of law, the sum set forth in this section is hereby authorized from the
109 Intragovernmental Service Fund established in section 2Q of chapter 29 of the General Laws for
110 the several purposes specified in this section or in the appropriation acts and subject to the
111 provisions of law regulating the disbursement of public funds for the fiscal year ending June 30,
112 2025. This sum shall be in addition to any amounts previously authorized and made available for
113 the purposes of this item. These sums shall be made available through the fiscal year ending June
114 30, 2026.

115 TREASURER AND RECEIVER-GENERAL

116 Office of the Treasurer and Receiver-General

117 0699-0018 Agency Debt Service Programs.....\$21,000,000

118 SECTION 2C.I. For the purpose of making available in fiscal year 2026 balances of
119 appropriations which otherwise would revert on June 30, 2025, the unexpended balances of the
120 appropriations listed below, not to exceed the amount specified below for each item, are hereby
121 re-appropriated for the purposes of and subject to the conditions stated for the corresponding
122 item in sections 2 or 2F of chapter 140 of the acts of 2024; provided, however, that for items
123 which do not appear in said sections 2 or 2F of said chapter 140 of the general appropriation act,
124 the amounts in this section are re-appropriated for the purposes of and subject to the conditions
125 stated for the corresponding item in sections 2 or 2A of this act or in prior appropriation acts.
126 Amounts in this section are re-appropriated from the fund or funds designated for the
127 corresponding item in said sections 2 or 2F of said chapter 140; provided, however, that for items
128 which do not appear in said sections 2 or 2F of said chapter 140, the amounts in this section are
129 re-appropriated from the fund or funds designated for the corresponding item in sections 2 to 2F,
130 inclusive, of this act or in prior appropriation acts. The unexpended balance of each
131 appropriation in the Massachusetts management accounting and reporting system with a
132 secretariat code of 01 or 17 is hereby re-appropriated for the purposes of and subject to the
133 conditions stated for the corresponding item in said section 2 of said chapter 140. The sums re-
134 appropriated in this section shall be in addition to any amounts available for said purposes.

135 JUDICIARY

136 Supreme Judicial Court

137 0320-0003 Supreme Judicial Court.....\$400,000

138	Appeals Court	
139	0322-0100	Appeals Court.....\$175,000
140	DISTRICT ATTORNEYS	
141	Northwestern District Attorney	
142	0340-0600	Northwestern District Attorney.....\$225,000
143	District Attorneys' Association	
144	0340-9111	District Attorneys' Association.....\$307,101
145	TREASURER AND RECEIVER-GENERAL	
146	Office of the Treasurer and Receiver-General	
147	0610-2000	Welcome Home Bill Bonus Payments.....\$600,000
148	POLICE REFORM COMMISSIONS	
149	0800-0000	Massachusetts Police Officer Standards and Training
150	Commission.....	\$73,853
151	OFFICE OF THE CHILD ADVOCATE	
152	0930-0100	Office of the Child Advocate.....\$200,000
153	0930-0101	Center on Child Wellbeing and Trauma.....\$1,900,000
154	CENTER FOR HEALTH INFORMATION AND ANALYSIS	
155	4100-0060	Center for Health Information and Analysis.....\$693,500

156	4100-0063	Betsy Lehman Center.....	\$395,450
157	EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE		
158	Health Policy Commission		
159	1450-1200	Health Policy Commission.....	\$750,000
160	Reserves		
161	1599-4448	Collective Bargaining Reserve.....	\$34,000,000
162	EXECUTIVE OFFICE OF TECHNOLOGY SERVICES AND SECURITY		
163	1790-1700	Core Technology Services and Security.....	\$355,089
164	EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES		
165	Massachusetts Commission for the Deaf and Hard of Hearing		
166	4125-0100	Massachusetts Commission for the Deaf and Hard of	
167	Hearing.....		\$170,000
168	Department of Transitional Assistance		
169	4400-1000	Department of Transitional Assistance Administration and	
170	Operation.....		\$2,813,484
171	EXECUTIVE OFFICE OF VETERANS' SERVICES		
172	Veterans' Services		

173	1410-0630	Agawam and Winchendon Veterans'	
174	Cemeteries.....		\$185,000
175	Veterans' Home in Chelsea		
176	4180-0100	Veterans' Home in Chelsea Administration and	
177	Operations.....		\$916,018
178	Veterans' Home in Holyoke		
179	4190-0100	Veterans' Home in Holyoke Administration and	
180	Operations.....		\$150,018
181	MASSACHUSETTS DEPARTMENT OF TRANSPORTATION		
182	1596-2401	Federal Matching Funds.....	\$23,000,000
183	1596-2406	Regional Transit Funding and Grants.....	\$11,155,416
184	EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT		
185	Division of Insurance		
186	7006-0020	Division of Insurance.....	\$1,274,008
187	Massachusetts Marketing Partnership		
188	7008-0900	Massachusetts Office of Travel and Tourism.....	\$100,000
189	EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES		
190	7004-0102	Homeless Individual Shelters.....	\$2,100,000

191	EXECUTIVE OFFICE OF EDUCATION	
192	Department of Early Education and Care	
193	3000-1000	Department of Early Education and Care.....\$7,500,000
194	Department of Elementary and Secondary Education	
195	7061-9805	Teacher Diversity Initiative.....\$8,300,000
196	1596-2436	Mental Health Supports and Wraparounds.....\$4,657,078
197	Department of Higher Education	
198	7066-0025	Performance Management Set Aside.....\$2,000,000
199	EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY	
200	Department of State Police	
201	8100-0515	New State Police Class.....\$9,600,000
202	Department of Fire Services	
203	8324-0000	Department of Fire Services Administration.....\$560,750
204	8324-0050	Local Fire Department Projects and Grants.....\$250,000

205 SECTION 2C.II. For the purpose of making available in fiscal year 2026 balances of
206 retained revenue and intragovernmental chargeback authorizations which otherwise would revert
207 on June 30, 2025, the unexpended balances of the authorizations listed below, not to exceed the
208 amount specified below for each item, are hereby re-authorized for the purposes of and subject to

209 the conditions stated for the corresponding item in sections 2 to 2F, inclusive, of chapter 140 of
210 the acts of 2024; provided, however, that for items which do not appear in said sections 2 to 2F,
211 inclusive, of said chapter 140, the amounts in this section are re-authorized for the purposes of
212 and subject to the conditions stated for the corresponding item in sections 2 through 2F,
213 inclusive, of this act or in prior appropriation acts. Amounts in this section are re-authorized
214 from the fund or funds designated for the corresponding item in sections 2 to 2F, inclusive, of the
215 general appropriation act; provided, however, that for items which do not appear in sections 2 to
216 2F, inclusive, of the general appropriation act, the amounts in this section are re-authorized from
217 the fund or funds designated for the corresponding item in sections 2 to 2F, inclusive, of this act
218 or in prior appropriation acts. The sums re-authorized in this section shall be in addition to any
219 amounts available for those purposes.

220 MASSACHUSETTS COMMISSION AGAINST DISCRIMINATION

221 0940-0103 Equal Employment Opportunity Commission Retained
222 Revenue.....\$1,205,504

223 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

224 Operational Services Division

225 1775-0800 Chargeback for Purchase Operation and Repair of State
226 Vehicles.....\$200,000

227 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

228 Office of the Secretary

229 7002-0018 Chargeback for Economic Development IT

230 Costs.....\$3,846,468

231 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

232 Department of Correction

233 8900-0021 Chargeback for Prison Industries and Farm

234 Program.....\$430,000

235 SECTION 3. Section 10H of chapter 21A of the General Laws, as appearing in the 2024
236 Official Edition, is hereby amended by striking out, in line 33, the words “of \$10 per fish” and
237 inserting in place thereof the following words:- for a recreational fisher of \$10 per fish or \$5 per
238 pound of striped bass or for a commercial fisher of the market value of all catch seized and
239 labeled pursuant to section 12 not to exceed \$10,000.

240 SECTION 4. Section 3 of chapter 23I of the General Laws, as so appearing, is hereby
241 amended by striking out, in line 42, the word “Six” and inserting in place thereof the following
242 figure:- Five.

243 SECTION 5. Section 2HHHH of chapter 29 of the General Laws, as so appearing, is
244 hereby amended by inserting after the figure “71”, in lines 6 and 15, the following words:- ,
245 section 74E of chapter 112, section 18 of chapter 112A.

246 SECTION 6. Section 2YYYY of said chapter 29, as so appearing, is hereby amended by
247 striking out the second paragraph and inserting in place thereof the following paragraph:-

248 The secretary may expend, without further appropriation: (i) not more than \$160,000,000
249 per fiscal year from the fund to expand and support the residential treatment system to treat

individuals with a substance use disorder or co-occurring mental health and substance use disorder and to expand and increase access to the 24-hour diversionary system; (ii) not more than \$135,000,000 per fiscal year from the fund to reduce stigma, expand access, support implementation and increase competencies for medications for substance use disorder; (iii) not more than \$35,000,000 per fiscal year from the fund to support access to evidence-based recovery services through peer and paraprofessional services; and (iv) not more than \$85,000,000 per fiscal year from the fund to ensure appropriate assessment for levels of care utilizing American Society of Addiction Medicine or other evidence-based modalities and to support integration of physical health, mental health and substance use disorder care across all provider settings. To accommodate timing discrepancies between the receipt of revenues and related expenditures, the fund may incur expenses, and the comptroller shall certify for payment, amounts not to exceed the most recent revenue estimate as certified by the MassHealth director, as reported in the state accounting system. Amounts credited to the fund shall not be subject to further appropriation and money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent fiscal year.

SECTION 7. Section 2AAAAA of said chapter 29, as so appearing, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

There shall be credited to the fund: (i) any transfers from the Health Safety Net Trust Fund established in section 66 of chapter 118E; (ii) any revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (iii) an amount equal to any federal financial participation revenues claimed and received by the commonwealth for eligible expenditures made from the fund; and (iv) interest earned on any money in the fund. Money from the fund shall be expended for payments to providers that

qualify under an approved federal waiver and in accordance with said waiver. Amounts credited to the fund shall not be subject to further appropriation. At the end of each fiscal year, the secretary of health and human services shall determine, in the secretary's sole discretion, the amount of any money in the fund that is in excess of the money needed to make payments from the fund in accordance with said waiver; provided, however, that the money needed to make such payments shall include any money needed to make any payments that are unearned as of the end of such year but potentially earned in a subsequent year. Subject to the terms of said waiver: (i) for periods applicable to the waiver beginning on or after January 1, 2025, the secretary of health and human services shall transfer to the Health Safety Net Trust Fund established in said section 66 of said chapter 118E the state share of any such excess money, excluding any federal funds; and (ii) for periods applicable to the waiver through December 31, 2024, the secretary of health and human services shall transfer to said Health Safety Net Trust Fund the state share of any such excess money, multiplied by a fraction, the numerator of which is \$62,500,000 and the denominator of which is the total amount transferred to or deposited in the fund for such fund year, excluding federal funds. Money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in subsequent fiscal years. To accommodate timing discrepancies between the receipt of revenue and related expenditures, the comptroller may certify for payment amounts not to exceed the most recent revenue estimates as certified by the secretary of health and human services to be transferred, credited or deposited under this section.

SECTION 8. Section 2TTTTT of said chapter 29 is hereby amended by striking out subsection (c), as appearing in section 51 of chapter 140 of the acts of 2024, and inserting in place thereof the following subsection:-

(c)(1) The secretary shall expend money in the fund, including all amounts credited to the fund, for payments to qualifying acute hospital providers under contract with the executive office of health and human services or under subcontracts with care organizations that contract with the executive office in connection with the MassHealth program as provided in this subsection.

(2) The secretary shall annually expend amounts from the fund averaging, for the 2-year period from October 1, 2025 to September 30, 2027, inclusive, not less than \$2,264,500,000 per year; provided, however, that all such payments shall fall into 1 of the following categories: (i) health equity incentive payments; (ii) clinical quality incentive payments; (iii) other incentive payments; (iv) rate payments for services provided to MassHealth members; or (v) targeted payments to: (A) freestanding pediatric acute hospitals; (B) nonprofit teaching acute hospitals that provide medical, surgical, emergency and obstetrical services and are affiliated with a state-owned medical school; (C) freestanding cancer hospitals; (D) the acute hospital that had the lowest statewide commercial relative price in fiscal year 2019 as reported by the center for health information and analysis; (E) the independent group 1 safety net hospital that had the largest percentile of operating loss in fiscal year 2022 as reported by the center for health information and analysis; (F) the acute hospital that had the highest statewide public payer mix in fiscal year 2023 as determined by the secretary; (G) the acute hospital affiliated with a health system with 2 or more critical access hospitals operating in the commonwealth in calendar year 2025, as determined by the secretary; or (H) to any non-state-owned public hospital in the commonwealth, as determined by the secretary. The secretary may determine funding allocations among and within each such category within a given year; provided, however, that such allocations shall be consistent with all approved federal waivers and state plan provisions; and provided further, that the secretary shall allocate an average of not less than \$1,280,000,000 per

year, for the 2-year period from October 1, 2025 to September 30, 2027, inclusive, for the rate payments described in clause (iv), with an average of not less than \$92,000,000 allocated for group 1 safety net hospitals for such 2-year period, an average of not less than \$460,000,000 allocated for group 2 safety net hospitals for such 2-year period and an average of not less than \$728,000,000 allocated across all acute hospitals for such 2-year period.

(3) Of the targeted payments described in clause (v) of paragraph (2), the secretary shall expend annually from the fund: (i) \$70,000,000 to freestanding pediatric acute hospitals, of which at least 98 per cent shall be paid to the freestanding pediatric hospital that had the largest volume of inpatient discharges in fiscal year 2019; (ii) \$35,000,000 to nonprofit teaching acute hospitals that provide medical, surgical, emergency and obstetrical services and are affiliated with a state-owned medical school; (iii) \$14,000,000 to the acute hospital that had the lowest statewide commercial relative price in fiscal year 2019 as reported by the center for health information and analysis; (iv) \$6,000,000 to freestanding cancer hospitals; (v) \$10,000,000 to the independent group 1 safety net hospital that had the largest operating percentile loss in fiscal year 2022 as reported by the center for health information and analysis; (vi) \$6,000,000 to the acute hospital that had the highest statewide public payer mix in fiscal year 2023, as determined by the secretary; (vii) \$6,000,000 to the acute hospital affiliated with a health system with 2 or more critical access hospitals operating in the commonwealth in calendar year 2025, as determined by the secretary; and (viii) \$2,000,000 to any non-state-owned public hospital in the commonwealth, as determined by the secretary.

(4) Of the incentive payments described in clauses (i) and (ii) of paragraph (2), the secretary shall make interim payments to qualifying hospitals based on the secretary's estimate of each such hospital's final payment for the measurement period. As soon as practicable after

the close of the measurement period, the secretary shall determine the final amount of each qualifying hospital's incentive payments and shall reconcile each hospital's interim payment with its final payment.

(5) If, in any fiscal year, the commonwealth fails to secure federal financial participation necessary to make expenditures described in this section, or if the total hospital assessment amount described in section 67 of chapter 118E is insufficient to support the distributions to the fund required to be made from the Health Safety Net Trust Fund established in section 66 of said chapter 118E, or if such distributions are otherwise not made due to limitations on federal matching, applicable payment ceilings or other restrictions under state or federal law, then the expenditures otherwise required to be made from the fund shall be reduced proportionally based on the total amount available for expenditure.

SECTION 9. Subsection (c) of section 2UUUUU of said chapter 29, as appearing in the 2024 Official Edition, is hereby amended by adding the following paragraph:-

(3) If, in any fiscal year, the commonwealth fails to secure federal financial participation necessary to make expenditures described in this section, or if the total hospital assessment amount described in section 67 of chapter 118E is insufficient to support the distributions to the fund required to be made from the Health Safety Net Trust Fund established in section 66 of said chapter 118E, or if such distributions are otherwise not made due to limitations on federal matching, applicable payment ceilings, or other restrictions under state or federal law, then the expenditures otherwise required to be made from the fund shall be reduced proportionally based on the total amount available for expenditure.

SECTION 10. Section 2FFFFF of said chapter 29, as so appearing, is hereby amended by striking out subsection (c) and inserting in place thereof the following subsection:-

(c) The secretary shall annually expend money in the fund, including all amounts credited to the fund, for payments to Medicaid managed care organizations, as such term is defined in section 64 of chapter 118E; provided, however, that such amounts expended annually shall be not less than the Medicaid managed care organization revenue amount, as such term is defined in said section 64 of said chapter 118E; and provided further, that such expenditures shall be consistent with all approved federal waivers and state plan provisions.

SECTION 11. Said chapter 29 is hereby further amended by inserting after section 2LLLLL the following 2 sections:-

Section 2MMMMM. There shall be established and set up on the books of the commonwealth a separate fund known as the Deficiency Reserve Fund. The fund shall be credited with: (i) appropriations or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to, gifts, grants and donations; and (iii) interest earned on any money in the fund. Amounts credited to the fund shall be expended, subject to appropriation, to fulfill existing financial obligations of the commonwealth with unanticipated deficiencies. Money remaining in the fund at the end of each fiscal year shall not revert to the General Fund. The fund shall not be subject to section 5C.

Section 2NNNNN. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund known as the Public Higher Education Student Support Fund, which shall be administered by the secretary of education. The

385 fund shall be credited with: (i) appropriations or other money authorized or transferred by the
386 general court and specifically designated to be credited to the fund; (ii) funds from public and
387 private sources, including, but not limited to, gifts, grants and donations; and (iii) interest earned
388 on any money in the fund.

389 (b) Amounts credited to the fund shall be expended, without further appropriation, to: (i)
390 supplement financial aid awards to students at public institutions of higher education to prevent a
391 reduction in aid relative to the amount awarded in the prior fiscal year or relative to amounts
392 established subject to appropriation in statute or regulation, which shall include, but not be
393 limited to, the maintenance of the no cost community college program under section 5B of
394 chapter 15A of the General Laws; (ii) supplement allocations to public institutions of higher
395 education for financial aid programs to prevent a reduction in allocation from the prior fiscal
396 year; or (iii) otherwise maintain financial aid benefits to students relative to prior year benefit
397 levels. The secretary of education shall provide notice to the secretary of administration and
398 finance, the clerks of the house of representatives and senate and the house and senate
399 committees on ways and means not less than 15 days prior to expending funds from the Public
400 Higher Education Student Support Fund, including, but not limited to, the purpose and amount of
401 each expenditure.

402 (c) The unexpended balance in the fund at the end of a fiscal year shall remain available
403 for expenditure in subsequent fiscal years. No expenditure made from the fund shall cause the
404 fund to be in deficit.

405 SECTION 12. Chapter 31 of the General Laws is hereby amended by adding the
406 following section:-

Section 79. Following their original appointment and oath as a permanent full-time environmental police officer in the police force of the office of law enforcement under section 10A of chapter 21A, a person shall perform the duties of such position on a full-time basis for a probationary period of 12 months before they shall be considered a full-time tenured employee in such position. The administrator, with the approval of the commission, may establish procedures to ensure the evaluation by appointing authorities, prior to the end of such probationary period, of the performance of persons appointed as police officers in such force. Unless otherwise provided by civil service rule, and with appropriate adjustments to the timing of performance evaluations called for therein, the second paragraph of section 34 shall apply to persons covered by this section.

SECTION 13. Section 1 of chapter 32 of the General Laws is hereby amended by striking out the definition of “Violent act injury”, as appearing in the 2024 Official Edition, and inserting in place thereof the following definition:-

“Violent act injury”, a catastrophic or life-threatening permanent bodily injury sustained as a direct and proximate result of a violent attack upon a person by means of a dangerous weapon, which is used in a manner intended to cause serious injury or death, including, but not limited to, a firearm, knife, automobile or explosive device.

SECTION 14. Paragraph (a) of subdivision (2) of section 26 of said chapter 32, as so appearing, is hereby amended by adding the following sentence:- This subdivision shall not apply to a member in service who is physically unable to perform the essential duties of the member’s job by reason of violent act injury.

SECTION 15. Said section 26 of said chapter 32, as so appearing, is hereby further amended by inserting after subdivision (2) the following subdivision:-

(2½) Section 7 shall apply to any member in service classified in Group 3 who is an officer of the department of state police if the rating board, after an examination of such officer by a registered physician appointed by the board, reports in writing to the state board of retirement that such officer is physically incapacitated for the performance of duty by reason of a violent act injury occurring during the performance and within the scope of the officer's duty and without contributory negligence on the officer's part and that such incapacity is likely to be permanent.

SECTION 16. Section 56 of chapter 41 of the General Laws, as so appearing, is hereby amended by striking out, in lines 38 to 41, inclusive, the words "or (ii) the payment of software licenses, software maintenance agreements or online subscription services for school curriculum prior to the fiscal year in which services shall be rendered" and inserting in place thereof the following words:- (ii) the payment of software licenses, software maintenance agreements or online subscription services for school curriculum prior to the fiscal year in which services shall be rendered; or (iii) the payment of estimates issued by utilities for make-ready work to facilitate access to utility poles, conduits, ducts or rights-of way related to broadband infrastructure projects.

SECTION 17. Section 7 of chapter 66 of the General Laws, as so appearing, is hereby amended by adding the following sentence:- Subject to the Health Insurance Portability and Accountability Act of 1996, P.L. 104-191, the American Recovery and Reinvestment Act of 2009, P.L. 111-5, 42 C.F.R. Part 2, 42 U.S.C. 290dd-2 and 45 C.F.R. Parts 160, 162 and 164, all

records from state institutions for individuals with intellectual or developmental disabilities or mental health conditions in the commonwealth shall be open to public inspection and available for copying after the expiration of 75 years from creation of the record.

SECTION 18. Subsection (a) of section 24N of chapter 111 of the General Laws, as so appearing, is hereby amended by striking out the definition of “Routine childhood immunizations” and inserting in place thereof the following definition:-

“Routine childhood immunizations”, immunizations for children until their nineteenth birthday as determined by the commissioner.

SECTION 19. Subsection (c) of said section 24N of said chapter 111, as so appearing, is hereby amended by striking out the last 5 sentences and inserting in place thereof the following sentences:- The council shall recommend the list of routine childhood immunizations, including types of vaccines to be purchased and shall take into account provider preference, cost, availability and other factors as determined by the council. The commissioner shall recommend the amount of funding needed each fiscal year by calculating the total non-federal program cost. The council shall make recommendations to the commissioner on whether the commissioner may authorize provider choice of more than 1 comparable brand or type for a routine childhood immunization vaccine. In its recommendations, the council shall examine the feasibility, costs and benefits of authorizing provider choice, provide a schedule of the cost of each comparable brand or type of a vaccine recommended for provider choice and demonstrate that the estimated vaccine cost of authorizing provider choice would not be substantially greater than the estimated vaccine cost of purchasing a single brand or type of a vaccine. The commissioner of public health shall determine the final list of routine childhood immunizations and vaccines to be

472 purchased. The council shall also consider other vaccine-related questions presented by the
473 commissioner.

474 SECTION 20. Said section 24N of said chapter 111, as so appearing, is hereby further
475 amended by striking out, in lines 109 to 111, inclusive, the words “Advisory Committee on
476 Immunization Practices of the Centers for Disease Control and Prevention” and inserting in place
477 thereof the following word:- commissioner.

478 SECTION 21. Chapter 112 of the General Laws is hereby amended by inserting after
479 section 74D the following section:-

480 Section 74E. (a) The board of registration in nursing may obtain a state and national
481 fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine
482 the suitability of an applicant for a license to practice nursing pursuant to sections 74, 74A, 76
483 and 80B, including, but not limited to, registered nurses, licensed practical nurses and advanced
484 practice registered nurses.

485 (b) Registered nurses subject to background checks pursuant to this section shall be
486 individuals who hold ultimate responsibility for direct and indirect nursing care and are seeking:
487 (i) licensure as a registered nurse pursuant to this chapter; and (ii) to provide nursing care, health
488 maintenance, teaching, counseling, planning and restoration for optimal functioning and comfort
489 of patients they serve within the commonwealth. For the purposes of this section, “advanced
490 practice registered nurse” shall mean a registered nurse authorized by the board of registration in
491 nursing to perform an expanded scope of practice when caring for patients in the commonwealth
492 consistent with section 80B.

(c) Licensed practical nurses subject to background checks pursuant to this section shall be individuals who are seeking: (i) licensure as a practical nurse pursuant to this chapter; and (ii) to provide nursing care and health maintenance services to patients within the commonwealth.

(d) An individual applying to the board of registration in nursing for a license to practice nursing shall submit a full set of fingerprints to the identification section of the department of state police to obtain a state and national fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine the suitability of any applicant for licensure.

(e) Fingerprints submitted pursuant to this section shall be used by the department of state police to conduct a state criminal history check and forwarded to the Federal Bureau of Investigation for a national criminal history check in accordance with the policies and procedures established by the state identification section of the department of state police and by the department of criminal justice information services. Fingerprint submissions may be retained by the Federal Bureau of Investigation, the state identification section of the department of state police and the department of criminal justice information services to assist the board of registration in nursing to ensure the continued suitability of these licensees and persons subject to criminal background checks under this section. The department of criminal justice information services may disseminate the results of the state and national criminal background checks to authorized staff employed by the department of public health and board of registration in nursing.

(f) Each applicant shall pay a fee, as established by the secretary of administration and finance, in consultation with the secretary of public safety and security, to offset the costs of operating and administering a fingerprint-based criminal background check system. The

secretary of administration and finance, in consultation with the secretary of public safety and security, may increase the fee accordingly if the Federal Bureau of Investigation increases its services fees for processing fingerprint background checks. Any fees collected from fingerprinting activity under this section shall be deposited into the Fingerprint-Based Background Check Trust Fund established in section 2HHHH of chapter 29.

(g) The board of registration in nursing may use the results of the criminal history record check solely for the purpose of determining the applicant's eligibility for a license to practice nursing pursuant to sections 74, 74A, 76 and 80B. The department of public health and board of registration in nursing shall not disseminate the criminal history record check information to any other entity.

(h) The department of public health and board of registration in nursing may receive all available criminal offender record information, juvenile adjudications and delinquency matters, sealed records and the results of checks of state and national criminal history information databases under Public Law 92-544. Upon receipt of the results of the state and national criminal background checks, the department of public health, board of registration in nursing and authorized staff shall treat the information according to sections 167 to 178, inclusive, of chapter 6 and the regulations thereunder regarding criminal offender record information.

(i) The board of registration in nursing may promulgate regulations necessary to carry out this section.

SECTION 22. Sections 1 to 5, inclusive, of chapter 113 of the General Laws are hereby repealed.

SECTION 23. Section 64 of chapter 118E of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of “Assessed charges” and inserting in place thereof:-

"Assessed charges", gross patient service revenue attributable to all patients less gross patient service revenue attributable to Title XVIII, XIX and XXI programs, as such revenues are reported to the center for health information and analysis and as determined by the secretary.

SECTION 24. Said section 64 of said chapter 118E, as so appearing, is hereby further amended by striking out the definition of “Managed care organization reinvestment revenue amount” and inserting in place thereof the following 3 definitions:-

“Managed care organization services assessment rate”, the rate calculated annually by dividing the non-Medicaid managed care organization revenue amount by the total managed care organization services subject to assessment that are not Medicaid managed care organization services subject to assessment.

“Medicaid managed care organization revenue amount”, an amount calculated annually by multiplying the Medicaid managed care organization services subject to assessment by the managed care organization services assessment rate.

“Non-Medicaid managed care organization revenue amount”, an amount equal, for each calendar year, to the sum of the following in the same year less \$20,000,000: (i) the health safety net managed care organization revenue amount; (ii) the Massachusetts Child Psychiatry Access Project revenue amount; (iii) the immunization revenue amount; (iv) the health policy commission revenue amount; (v) the center for health information and analysis revenue amount; (vi) the amount transferred, pursuant to section 66, to the Behavioral Health Access and Crisis

Intervention Trust Fund established in section 2WWWW of chapter 29; and (vii) the amounts necessary to incorporate prospectively all adjustments or reconciliations to account for under-assessments in the prior year.

SECTION 25. Said section 64 of said chapter 118E, as so appearing, is hereby further amended by striking out the definition of “Total managed care organization services assessment amount” and inserting in place thereof the following definition:-

“Total managed care organization services revenue amount”, an amount equal, for each calendar year, to the sum of the following in the same year: (i) the Medicaid managed care organization revenue amount; and (ii) the non-Medicaid managed care organization revenue amount.

SECTION 26. Said section 64 of said chapter 118E, as so appearing, is hereby further amended by striking out, in line 189, the figure “\$1,484,050,000” and inserting in place thereof the following figure:- \$1,534,050,000.

SECTION 27. Section 66 of said chapter 118E is hereby amended by striking out subsection (b), as so appearing, and inserting in its place thereof the following 2 subsections:-

(b) The fund shall consist of: (i) all amounts paid by hospitals and managed care organizations under sections 67 and 68; (ii) all appropriations for the purpose of payments to acute hospitals or community health centers for health services provided to uninsured and underinsured residents; (iii) any transfers from the Commonwealth Care Trust Fund established in section 2000 of chapter 29; (iv) any transfers from the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29; (v) any transfers from the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29; (vi) any transfers

from the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29; and (vii) all property and securities acquired by and through the use of money belonging to the fund and all interest thereon. There shall also be credited to the fund an amount equal to any federal financial participation claimed and received by the commonwealth for eligible expenditures made from the fund and financed by money transferred from the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29, the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29, or from the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29. To accommodate timing discrepancies between the receipt of such revenue and related expenditures, the comptroller may certify for payment amounts not to exceed the most recent revenue estimates as certified by the secretary of health and human services to be transferred, credited or deposited under this subsection. Annually, the office shall transfer from the non-federal money in the fund: (A) \$149,300,000 to the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29; (B) \$1,041,170,000 to the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29; (C) \$115,500,000 to the Population Health Investment Trust Fund established in section 2UUUUU of chapter 29; (D) \$ 33,169,685 to the Non-Acute Care Hospital Reimbursement Trust Fund established in section 2WWWW of chapter 29; (E) an amount equal to the Medicaid managed care organization revenue amount to the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29; (F) an amount equal to the Massachusetts Child Psychiatry Access Project revenue amount to the Massachusetts Child Psychiatry Access Project Fund established in section 2EEEEEE of chapter 29; (G) an amount equal to the health policy commission revenue amount to the Healthcare Payment Reform Fund established in section 100

of chapter 194 of the acts of 2011; (H) an amount equal to the immunization revenue amount to the Vaccine Purchase Fund established in section 24N of chapter 111; (I) \$33,700,000 to the Behavioral Health Access and Crisis Intervention Trust Fund established in section 2WWWW of chapter 29; (J) an amount equal to the center for health information and analysis revenue amount to the Center for Health Information and Analysis Fund established in section 7A of chapter 12C; and (K) \$35,000,000 to the Essential Community Provider Trust Fund established in section 2PPP of chapter 29. The office shall expend amounts in the fund, except for amounts transferred to the Safety Net Provider Trust Fund, the Hospital Investment and Performance Trust Fund, the Population Health Investment Trust Fund, the Non-Acute Care Hospital Reimbursement Trust Fund, the Managed Care Organization Services Reinvestment Fund, the Massachusetts Child Psychiatry Access Project Fund, the Vaccine Purchase Fund, the Center for Health and Information Analysis Fund, the Healthcare Payment Reform Fund and the Behavioral Health Access and Crisis Intervention Trust Fund, for payments to hospitals and community health centers for reimbursable health services provided to uninsured and underinsured residents, consistent with the requirements of this section, section 69 and the regulations adopted by the office. The amount collected pursuant to clause (vii) of the definition of non-Medicaid managed care organization revenue amount in section 64 shall be dedicated to reducing the shortfall, as described in subsection (b) of section 69, for the year prior to the assessment year. The office shall also annually expend money from the fund for the expenses of the executive office, including the health safety net office under subsection (a), for the administration of the health safety net and related assessments. The office shall also expend not more than \$6,000,000 annually from the fund for demonstration projects that use case management and other methods to reduce the liability of the fund to acute hospitals. Any annual balance remaining in the fund

after these payments have been made shall be retained in the fund and shall not revert to the General Fund. All interest earned on the amounts in the fund shall be deposited or retained in the fund. The director shall from time-to-time requisition from the fund amounts that the director considers necessary to meet the current obligations of the office for the purposes of the fund and estimated obligations for a reasonable future period.

(c) For each fiscal year, in the event that federal financial participation is not available for any of the Medicaid expenditures made or to be made from this fund or from amounts transferred from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b), or hospital assessment funding serving as the non-federal share of such expenditures is not available due to the application of any federal law, regulation or policy, such as federal expenditure limits or federal health care-related tax rules, or for any other reason, the amount of each such forementioned transfer from the fund shall be reduced on a pro-rata basis by multiplying each such expenditure or transfer by a fraction, the numerator of which is the aggregate amount of the transfers from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b) for which federal financial participation will be available and the denominator of which is the aggregate amount the expenditures and transfers from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b) that would otherwise be made.

SECTION 28. Said chapter 118E is hereby further amended by striking out section 67, as so appearing, and inserting in place thereof the following section:-

Section 67. (a) Subject to all required federal approvals, including any required waivers under 42 CFR 433.68, a hospital's annual liability to the fund shall be calculated in accordance

with this section. The annual aggregate liability of all hospitals to the fund shall equal the total hospital assessment amount.

(b) [reserved].

(c) The office shall promulgate regulations establishing an appropriate mechanism for enforcing each hospital's liability to the fund if a hospital does not make a scheduled payment to the fund.

(d) For the purposes of the assessment in this section, all hospitals in the commonwealth shall be divided into the following groups, as determined by the secretary: (i) large group 1 safety net hospitals which, for the purposes of this section, shall mean, any group 1 safety net hospital that had not less than 355 staffed beds in fiscal year 2022, as reported by the center for health information and analysis; (ii) small group 1 safety net hospitals which, for the purposes of this section, shall mean any group 1 safety net hospital that had less than 355 staffed beds in fiscal year 2022 as reported by the center for health information and analysis; (iii) large group 2 safety net hospitals which, for the purposes of this section, shall mean any group 2 safety net hospital that had not less than 355 staffed beds in fiscal year 2022 as reported by the center for health information and analysis; (iv) small group 2 safety net hospitals which, for the purposes of this section, shall mean any group 2 safety net hospital that had less than 355 staffed beds in fiscal year 2022 as reported by the center for health information and analysis; (v) freestanding pediatric acute hospitals; (vi) academic, teaching and specialty hospitals which, for the purposes of this section, shall mean an academic medical center, teaching hospital or specialty hospital as determined by the center for health information and analysis as of September 30, 2019, but excluding any high public payer hospital; (vii) private acute hospitals which, for the purposes of

this section, shall mean a private hospital licensed under section 51 of chapter 111 that contains a majority of medical-surgical, pediatric, obstetric and maternity beds as defined by the department of public health and operating as of September 30, 2019, but excluding any safety net hospital or academic, teaching and specialty hospital; (viii) non-state public hospitals which, for the purposes of this section, shall mean any non-state-owned public hospital in the commonwealth as determined by the secretary; and (ix) non-acute hospitals which, for the purposes of this section shall mean any nonpublic hospital licensed by the department of public health under said section 51 of said chapter 111; provided, however, that non-acute hospital shall not include an acute care hospital under section 25B of said chapter 111 or a nonpublic hospital licensed as an inpatient facility by the department of mental health under section 19 of chapter 19 and regulations promulgated thereunder but not categorized as a class VII licensee under the regulations.

(e) Each of the groups described in subsection (d) shall be subject to the following assessment rates: (i) large group 1 safety net hospitals shall be subject to a rate of 16.510 per cent for inpatient services and 8.000 per cent for outpatient services; (ii) small group 1 safety net hospitals shall be subject to a rate of 14.500 per cent for inpatient services and 5.500 per cent for outpatient services; (iii) large group 2 safety net hospitals shall be subject to a rate of 8.100 per cent for inpatient services and 16.200 per cent for outpatient services; (iv) small group 2 safety net hospitals shall be subject to a rate of 16.450 per cent for inpatient services and 9.100 per cent for outpatient services; (v) freestanding pediatric acute hospitals shall be subject to a rate of 3.300 per cent for inpatient services and 2.600 per cent for outpatient services; (vi) academic, teaching and specialty hospitals shall be subject to a rate of 4.675 per cent for inpatient services and 1.290 per cent for outpatient services; (vii) private acute hospitals shall be subject to a rate of 8.299 per cent for inpatient services and 0.720 per cent for outpatient services; (viii) non-state

public hospitals shall be subject to a rate of 1.250 per cent for inpatient services and 1.250 per cent for outpatient services; and (ix) non-acute hospitals shall be subject to a rate of 3.300 per cent for inpatient services and 3.300 per cent for outpatient services; provided, however, that the office shall increase each such rate by the amount necessary to generate 50 per cent of the estimated cost as determined by the secretary of administration and finance, of administering the health safety net and related assessments in accordance with sections 65 to 69, inclusive. If hospital closures or hospital changes in status to a different type of provider would result in a reduction of total hospital assessment amount, the secretary may, by regulation, adjust the assessment rates to ensure the total hospital assessment amount is not reduced by more than \$10,000,000 on an annual basis; provided, however, that any such adjustments to the rates shall ensure the rates remain in the same proportion to each other as established herein. If the total hospital assessment amount collected for the hospital assessment year exceeds the amount necessary to support the non-federal share of amounts transferred pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b) of section 66, the secretary shall, by regulation, adjust the assessment rates for the subsequent hospital assessment year to ensure the total hospital assessment amount does not exceed the amount necessary to support such expenditures; provided, however, that any such adjustments shall ensure the rates remain in the same proportion to each other as established herein and provided that any such adjustment does not jeopardize federal financial participation. In order to adjust the assessment rates by regulation as described in this subsection, the secretary of health and human services shall seek all required federal approvals the secretary deems necessary.

(f) The assessment rates described in subsection (e) shall be applied to each hospital's fiscal year 2023 assessed charges for inpatient and outpatient services as determined by the

secretary of health and human services; provided, however, that the term “assessed charges” shall have the meaning ascribed to it in section 64. The total of the resulting products shall equal a hospital’s annual assessment liability.

(g) Subject to receipt of all required federal approvals, the executive office shall implement the assessment structure described in this section and shall promulgate regulations, after consultation with Massachusetts Health and Hospital Association, Inc., necessary to support implementation of said assessment structure. In promulgating such regulations, and in consultation with Massachusetts Health and Hospital Association, Inc., the executive office shall, at a minimum: (i) specify an appropriate mechanism for determination and payment of an acute hospital's liability to the fund; (ii) identify the hospitals that belong to each group identified in subsection (d); (iii) specify an appropriate mechanism for the determination of a hospital’s liability in cases of merger or transfer of ownership; and (iv) specify an appropriate mechanism by which any amounts paid by a hospital in excess of a hospital’s total annual assessment liability may be refunded or otherwise credited to the hospital. The executive office shall also publish or otherwise make available to Massachusetts Health and Hospital Association, Inc. the data and methodology used in setting the tax rates and group classification prior to the promulgation of any such regulations.

(h) The secretary of health and human services may enforce the payment of required assessments under this section: (i) for hospitals licensed by the department of health, by notifying the department of the unpaid assessments and such information shall be considered by the department in determining suitability in accordance with section 51 of chapter 111 for the hospital or its affiliate provider entities; (ii) by offsetting payments from the office of Medicaid against the claims for payment by the delinquent hospital, against other hospitals or MassHealth-

contracted entities under common ownership as the delinquent hospital or against any successor in interest to the hospital or such provider entities under common ownership, in the amount of the delinquent fees owed, including any interest, penalties and reasonable attorneys' fees, and by transferring such funds into the fund; or (iii) creating, after demand for payment, a lien in favor of the commonwealth in an amount not to exceed the delinquent fees owed, including any interest, penalties and reasonable attorneys' fees, encumbering the building in which the delinquent hospital is located, encumbering the real property upon which the delinquent hospital is located, including fixtures, equipment or goods used in the operation of the delinquent hospital, or encumbering any real property in which the delinquent hospital holds an interest.

SECTION 29. Section 74 of said chapter 118E, as so appearing, is hereby amended by striking out subsection (k) and inserting in place thereof the following 2 subsections:-

(k) The council may contract with a provider of a pooled employer plan, as defined in 29 U.S.C. § 1002(43), on behalf of consumers and their personal care attendants.

(l) The council may perform other acts necessary or convenient to execute the powers expressly granted to it.

SECTION 30. Section 36 of chapter 123 of the General Laws, as so appearing, is hereby amended by inserting after the second sentence the following 3 sentences:- There shall be a rebuttable presumption that disclosure of patient records more than 50 years after the death of the patient is in the best interest of the patient; provided, however, that: (i) the records are facility records; and (ii) the requestor is a close relative or engaged in academic research. The department shall make best efforts to redact any personal identifying information of living individuals in such patient records in order to avoid undue invasion of privacy. The department

760 shall promulgate regulations in collaboration with the department of developmental services to
761 implement this rule.

762 SECTION 31. Section 17 of chapter 123B of the General Laws, as so appearing, is
763 hereby amended by inserting after the second sentence the following 3 sentences:- There shall be
764 a rebuttable presumption that disclosure of patient records more than 50 years after the death of
765 the patient is in the best interest of the patient; provided, that the: (i) records are facility records;
766 and (ii) requestor is a close relative or engaged in academic research. The department shall make
767 best efforts to redact any personal identifying information of living individuals in such patient
768 records in order to avoid undue invasions of privacy. The department shall promulgate
769 regulations in collaboration with the department of mental health to implement this rule.

770 SECTION 32. Said section 17 of said chapter 123B, as so appearing, is hereby further
771 amended by adding the following 3 sentences:- Each facility, subject to this chapter and section 7
772 of chapter 19B, shall maintain resident records for not less than 20 years after the closing of the
773 record due to discharge, death or last date of service. A facility shall not destroy such records
774 until after the retention period has elapsed and only upon notifying the department of public
775 health that the records will be destroyed; provided, however, that the department shall
776 promulgate regulations further defining an appropriate notification process. Each notice of
777 privacy practices by a facility shall include, but not be limited to: (i) information concerning the
778 provisions of this section; and (ii) the facility's records termination policy.

779 SECTION 33. Section 2 of chapter 130 of the General Laws, as so appearing, is hereby
780 amended by inserting after the word "chapter", in line 39, the following words:- or any rule or
781 regulation made under authority of this chapter.

SECTION 34. The second paragraph of section 21 of said chapter 130, as so appearing, is hereby amended by adding the following sentence:- The refusal or failure to submit a statistical report, or the knowing submission of a false statistical report, shall constitute a violation of this chapter.

SECTION 35. The first paragraph of section 80 of said chapter 130, as so appearing, is hereby amended by inserting after the first sentence the following sentence:- No person shall fish for or take fish for commercial purposes in the coastal waters, or land raw fish, whether frozen or unfrozen, in the commonwealth, for the purpose of sale, in violation of a commercial fisherman permit.

SECTION 36. Section 12 of chapter 159A1/2 of the General Laws, as so appearing, is hereby amended by inserting after the word “protection”, in line 66, the following words:- , the department of energy resources, the Massachusetts clean energy technology center

SECTION 37. Section 69O1/2 of chapter 164 of the General Laws, as so appearing, is hereby amended by striking out, in line 8, the word “62H” and inserting in place thereof the following word:- 62L.

SECTION 38. Section 69T of said chapter 164, as so appearing, is hereby amended by striking out, in line 7, the words “petition to construct such” and inserting in place thereof the following words:- application for a consolidated permit for the clean energy infrastructure

SECTION 39. Section 69U of said chapter 164, as so appearing, is hereby amended by striking out, in line 28, the word “(d)” and inserting in place thereof the following word:- (e).

SECTION 40. Section 69V of said chapter 164, as so appearing, is hereby amended by striking out, in line 21, the word “(g)” and inserting in place thereof the following word:- (h).

SECTION 41. Chapter 210 of the General Laws is hereby amended by striking out section 13, as so appearing, and inserting in place thereof the following section:-

Section 13. (a) The court shall, before decreeing a change of name, request a report from the commissioner of probation on the person filing the petition, and, upon entry of a decree, the name as established thereby shall be the legal name of the petitioner. The register may issue a certificate, under the seal of the court, of the name as so established. The court may, for good cause shown, require public notice of the petition to be given and any person to be heard thereon.

No decree shall be entered, however, until there has been filed in the court a copy of the birth record of the person whose name is sought to be changed, and, in case such person's name has previously been changed by decree of court or at marriage pursuant to section 1D of chapter 46, either a copy of: (i) the record of such person's birth amended to conform to the previous decree changing the person's name; (ii) such decree; or (iii) the record of marriage; provided, however, that the filing of any such copy may be dispensed with if the judge is satisfied that it cannot be obtained.

(b) The petition for name change, all pleadings, papers or documents filed in connection therewith and docket entries in the permanent docket and record books, online and otherwise, shall not be available for inspection unless the court, for good cause shown, otherwise orders or unless requested by the petitioner. The petition, reports, pleadings, papers, documents and permanent docket and record books shall be segregated.

823 SECTION 42. Section 33 of chapter 268 of the General Laws, as so appearing, is hereby
824 amended by inserting after the word “revenue”, in line 10, the following words:- or an officer or
825 employee acting under the authority of the United States or any department, agency or officer
826 thereof.

827 SECTION 43. Said section 33 of said chapter 268, as so appearing, is hereby further
828 amended by striking out, in lines 11 to 13, inclusive, the words “shall be punished by a fine of
829 not more than four hundred dollars or by imprisonment for not more than one year” and inserting
830 in place thereof the following words:- shall be punished by a fine of not more than \$1,000 or by
831 imprisonment for not more than 2 1/2 years.

832 SECTION 44. The fifth sentence of subsection (b) of section 83C of chapter 169 of the
833 acts of 2008, as appearing in section 61 of chapter 179 of the acts of 2022, is hereby amended by
834 striking out the following words:- and shall specify that any subsequent solicitation shall occur
835 within 24 months of a previous solicitation.

836 SECTION 45. Chapter 209 of the acts of 2018, as most recently amended by chapter 364
837 of the acts of 2024, is hereby further amended by striking out section 89 and inserting in place
838 thereof the following section:-

839 Section 89. There shall be established and set up on the books of the commonwealth a
840 separate, non-budgeted special revenue fund called the Woodlands Partnership of Northwest
841 Massachusetts Fund, which shall be administered by the Woodlands Partnership of Northwest
842 Massachusetts Board established pursuant to section 91. Amounts credited to the fund shall be
843 expended without further appropriation. There shall be credited into the fund revenues or other
844 financing sources directed to the fund by appropriation or other monies authorized by the general

845 court and specifically designated to be credited to the fund, any income derived from the
846 investment of amounts credited to the fund and monies from the repayment of loans from the
847 fund, funds from public or private sources, including, but not limited to, gifts, federal, state or
848 private grants, donations, rebates and settlements received by the commonwealth that are
849 specifically designated to be credited to the fund and all other amounts credited or transferred
850 into the fund from any other source. Amounts credited to said fund shall be used solely for
851 implementing the purposes and administration of the Woodlands Partnership of Northwest
852 Massachusetts established pursuant to section 91. The unexpended balance in the fund at the end
853 of a fiscal year shall remain available for expenditure in subsequent fiscal years. No expenditure
854 from the fund shall cause the fund to be in deficit at any point.

855 SECTION 46. Chapter 4 of the acts of 2021 is hereby amended by striking out section 9
856 and inserting in place thereof the following section:-

857 Section 9. Notwithstanding any general or special law to the contrary, the bonds that the
858 state treasurer may issue pursuant to section 34 of chapter 383 of the acts of 2020 shall be issued
859 for a term not to exceed 30 years. All such bonds shall be payable not later than June 30, 2065,
860 as recommended by the governor in a message to the general court dated August 14, 2025 under
861 section 3 of Article LXII of the Amendments to the Constitution.

862 SECTION 47. Item 7010-1192 of section 2 of chapter 126 of the acts of 2022 is hereby
863 amended by striking out the figure “2025”, inserted by section 41 of chapter 248 of the acts of
864 2024, and inserting in place thereof the following figure:- 2026.

865 SECTION 48. Item 2810-0122 of section 2 of chapter 28 of the acts of 2023 is hereby
866 amended by striking out the figure “2025”, inserted by section 76 of chapter 248 of the acts of
867 2024, and inserting in place thereof the following figure:- 2026.

868 SECTION 49. Item 4000-0300 of said section 2 of said chapter 28 is hereby further
869 amended by striking out the figure “2025”, inserted by section 79 of chapter 248 of the acts of
870 2024, and inserting in place thereof the following figure:- 2026.

871 SECTION 50. Item 7008-1116 of said section 2 of said chapter 28 is hereby amended by
872 striking out the figure “2025”, inserted by section 101 of chapter 248 of the acts of 2024, and
873 inserting in place thereof the following figure:- 2026.

874 SECTION 51. Item 1233-2401 of section 2 of chapter 140 of the acts of 2024 is hereby
875 amended by adding the following words:- ; provided, that notwithstanding any general or special
876 law to the contrary, a city or town that received funding under this item in fiscal year 2024 and
877 that remains eligible in fiscal year 2025 shall receive not less than the amount of funding that
878 such city or town received under this item in fiscal year 2024.

879 SECTION 52. Said item 1233-2401 of said section 2 of said chapter 140 is hereby further
880 amended by striking out the figure “\$750,000” and inserting in place thereof the following
881 figure:- \$1,185,432.

882 SECTION 53. Item 1599-0026 of said section 2 of said chapter 140 is hereby amended
883 by inserting after the word “Sharon” the following words:- and such funds shall be made
884 available until June 30, 2026.

885 SECTION 54. Said item 1599-0026 of said section 2 of said chapter 140 is hereby further
886 amended by inserting after the word “improvements”, the third time it appears, the following
887 words:- and such funds shall be made available until June 30, 2026.

888 SECTION 55. Item 2810-0122 of said section 2 of said chapter 140 is hereby amended
889 by inserting after the word “playground”, the second time it appears, the following words:- and
890 such funds shall be made available until June 30, 2026.

891 SECTION 56. Item 3000-4060 of said section 2 of said chapter 140 is hereby amended
892 by adding the following words:-

893 General Fund...83.94%

894 High-Quality Early Education & Care Affordability Fund...16.06%

895 SECTION 57. Item 7008-1116 of said section 2 of said chapter 140, as amended by
896 section 65 of chapter 14 of the acts of 2025, is hereby further amended by inserting after the
897 word “Sharon” the following words:- and such funds shall be made available until June 30, 2026.

898 SECTION 58. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
899 is hereby further amended by inserting after the word “Lynn”, the second time it appears, the
900 following words:- and such funds shall be made available until June 30, 2026.

901 SECTION 59. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
902 is hereby further amended by inserting after the word “projects”, the fifth time it appears, the
903 following words:- and such funds shall be made available until June 30, 2026.

904 SECTION 60. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
905 is hereby further amended by inserting after the word “hospitals” the following words:- and such
906 funds shall be made available until June 30, 2026.

907 SECTION 61. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
908 is hereby further amended by inserting after the word “families”, the third time it appears, the
909 following words:- and such funds shall be made available until June 30, 2026.

910 SECTION 62. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
911 is hereby further amended by inserting after the word “prevention”, the second time it appears,
912 the following words:- and such funds shall be made available until June 30, 2026.

913 SECTION 63. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
914 is hereby further amended by inserting after the word “programming”, the twenty-first time it
915 appears, the following words:- and such funds shall be made available until June 30, 2026.

916 SECTION 64. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
917 is hereby further amended by inserting after the word “resources”, the third time it appears, the
918 following words:- and such funds shall be made available until June 30, 2026.

919 SECTION 65. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
920 is hereby further amended by inserting after the word “services”, the fifteenth time it appears, the
921 following words:- and such funds shall be made available until June 30, 2026.

922 SECTION 66. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
923 is hereby further amended by inserting after the word “Boston, Inc.”, the third time it appears,
924 the following words:- and such funds shall be made available until June 30, 2026.

925 SECTION 67. Item 7010-1192 of said section 2 of said chapter 140 is hereby amended
926 by inserting after the word “Harwich” the following words:- and such funds shall be made
927 available until June 30, 2026.

928 SECTION 68. 8000-0313 of said section 2 of said chapter 140 is hereby amended by
929 inserting after the word “Millbury”, the second time it appears, the following words:- and such
930 funds shall be made available until June 30, 2026.

931 SECTION 69. Item 8100-0102 of said section 2 of said chapter 140 is hereby amended
932 by striking out the figure “\$49,000,000”, each time it appears, and inserting in place thereof, in
933 each instance, the following figure:- \$55,000,000.

934 SECTION 70. Item 8324-0050 of said section 2 of said chapter 140 is hereby amended
935 by inserting after the word “Hanover” the following words:- and such funds shall be made
936 available until June 30, 2026.

937 SECTION 71. Section 127 of said chapter 140 is hereby amended by striking out the
938 words “managed care organization reinvestment” and inserting in place thereof the following
939 words:- Medicaid managed care organization.

940 SECTION 72. Said section 127 of said chapter 140 is hereby further amended by striking
941 out the words “total managed care organization services assessment” and inserting in place
942 thereof the following words:- non-Medicaid managed care organization revenue.

943 SECTION 73. Section 198 of said chapter 140 is hereby amended by striking out the
944 figure “2025” and inserting in place thereof the following figure:- 2026.

945 SECTION 74. Section 222 of said chapter 140 is hereby amended by striking out
946 subsection (a).

947 SECTION 75. Said chapter 140 is hereby further amended by inserting after section 253
948 the following section:-

949 Section 253A. Section 19 of said chapter 15D, as inserted by section 36, shall take effect
950 on July 1, 2023.

951 SECTION 76. Item 1599-2625 of section 2A of chapter 1 of the acts of 2025 is hereby
952 amended by adding the following words:- ; and provided further, that the comptroller shall
953 transfer \$5,995,058 from this item to the General Federal Grants Fund for the purposes of item
954 4000-0004 in the Massachusetts management accounting and reporting system.

955 SECTION 77. Section 1 of chapter 7 of the acts of 2025 is hereby amended by adding the
956 following sentence:- These sums shall be made available through the fiscal year ending June 30,
957 2026.

958 SECTION 78. Item 4200-0100 of section 2 of chapter 9 of the acts of 2025 is hereby
959 amended by striking out the words “the Connecticut Valley YouthBuild program” and inserting
960 in place thereof the following words:- New North Citizens Council, Inc. Youth Services.

961 SECTION 79. Item 4403-2000 of said section 2 of said chapter 9 is hereby further
962 amended by striking out the words “prior appropriation continued”.

963 SECTION 80. Item 4408-1000 of said section 2 of said chapter 9 is hereby further
964 amended by striking out the words “prior appropriation continued”.

SECTION 81. Item 4510-0110 of said section 2 of said chapter 9 is hereby amended by striking out the words “a state primary care association qualified under section 330A(f)(1) of the Public Health Service Act, as codified at 42 U.S.C. section 254c(f)(1)” and inserting in place thereof the following words:- a state primary care association qualified under section 42 U.S.C. 254b(l).

SECTION 82. Item 0321-1510 of said section 2 of said chapter 9, as amended by section 81 of chapter 14 of the acts of 2025, is hereby further amended by striking out the figure “\$2,000,000” and inserting in place thereof the following figure:- \$3,000,000.

SECTION 83. Item 0910-0200 of said section 2 of said chapter 9, as amended by sections 82 and 83 of chapter 14 of the acts of 2025, is hereby further amended adding the following words:- ; provided further, that not later than June 30, 2026, the inspector general shall conduct an investigation and submit a report to the house and senate clerks, the joint committee on public safety and homeland security and the house and senate committees on ways and means that shall include, but shall not be limited to: (i) a detailed accounting of expenditures made by the sheriffs’ offices in fiscal year 2025; (ii) an analysis of sheriffs’ offices’ compliance with chapter 29 of the General Laws in fiscal year 2025; (iii) a review of spending by sheriffs’ offices on activities not specifically required by statute, case law or court order and how such spending has changed over time; (iv) an analysis of compensation levels and changes over the preceding 3 fiscal years, including comparisons among sheriffs’ offices and to the department of correction; and (v) recommendations to ensure compliance with said chapter 29, if necessary, among sheriffs’ offices; provided further, that each sheriff’s office shall comply with all requests from the office of the inspector general for any information deemed necessary to conducting said

investigation and submitting said report, including, but not limited to, requests for the production of records.

SECTION 84. Said item 0910-0200 of said section 2 of said chapter 9, as so amended, is hereby further amended by striking out the figure “\$6,256,039” and inserting in place thereof the following figure:- \$6,756,039.

SECTION 85. Section 97 of chapter 14 of the acts of 2025 is hereby amended by striking out the word “January” and inserting in place thereof the following word:- September.

SECTION 86. (a) There shall be within the executive office of public safety and security a sheriff fiscal oversight council.

(b) The council shall consist of the secretary of public safety and security, who shall serve as co-chair; the secretary of administration and finance, who shall serve as co-chair; and 3 members to be appointed by the governor, not less than 2 of whom shall have experience in the operation of correctional facilities and 1 of whom shall have experience in state government finance. The oversight council shall meet and hire staff as they deem necessary to ensure proper oversight of sheriff operations and finances.

(c) The council, in carrying out this section, shall have access to all records, documents, accounts, correspondence and any other data and material that is maintained by the sheriffs’ offices or other state agencies that the council deems necessary. Not less than monthly, each sheriff shall provide the council with information on the status of the revenues and expenses for their office’s operating budget and on the status of revenues, contracting, procurement and authorized and actual spending for any capital projects. Such reports shall provide itemized year-to-date expenditures and detailed projections for anticipated expenses for the remainder of the

1009 fiscal year and be in a form prescribed by the council. The council shall submit such monthly
1010 reports to the secretary of public safety and security, the secretary of administration and finance,
1011 the inspector general, the clerks of the senate and house of representatives, the chairs of the
1012 senate and house committees on ways and means and the chairs of the joint committee on public
1013 safety and homeland security.

1014 (d) The council may set financial management metrics to ensure the fiscal and
1015 operational integrity of sheriff operations. The council may formulate and recommend a plan for
1016 a sheriff's office to stabilize and strengthen its finances, management, operations and asset
1017 conditions with a focus on maintaining activities specifically required by statute, case law or
1018 court order while limiting cost growth year over year and ensuring total annual expenditures do
1019 not exceed annual state appropriations.

1020 (e) If a sheriff's office fails to meet any financial management metrics or any a
1021 recommended plan prescribed under subsection (d), as determined by the council, the council
1022 shall take action to ensure the fiscal and operational integrity of such sheriff's office, which may
1023 include, but shall not be limited to, the authority to: (i) appoint a receiver to take operational and
1024 managerial control of the applicable sheriff's office; provided that such receiver shall have
1025 experience in the operation of correctional facilities; (ii) direct the comptroller not to certify any
1026 amounts for payment from a sheriff's office; and (iii) prohibit a sheriff's office from incurring
1027 any new expenditures or obligations without prior approval of the council for a period of time to
1028 be determined by the council.

(f) The council shall dissolve on January 1, 2028; provided, however, that by majority vote of the council, the council may continue in existence to a date or in increments as determined by the council beyond January 1, 2028.

SECTION 87. Notwithstanding any general or special law to the contrary, in fiscal year 2025, the comptroller shall transfer \$200,000,000 from income surtax revenue, as defined by subsection (a) of section 2BBBBBB of chapter 29 of the General Laws, to the Student Opportunity Act Investment Fund established in section 35RRR of chapter 10 of the General Laws.

SECTION 88. Notwithstanding any general or special law to the contrary, the comptroller shall, after making the required transfer under section 229 of chapter 140 of the acts of 2024, transfer the fiscal year 2025 consolidated net surplus pursuant to section 5C of chapter 29 of the General Laws to the Deficiency Reserve Fund established in section 2MMMMMM of chapter 29 of the General Laws.

SECTION 89. Notwithstanding section 68 of chapter 118E of the General Laws or any other general or special law to the contrary, the secretary of health and human services shall implement the health care-related assessment on managed care organization services, established under said section 68 of said chapter 118E, as a broad-based and uniform assessment, in accordance with 42 C.F.R. 433.68(b), with the managed care organization services assessment rate, as such term is defined in section 64 of said chapter 118E, implemented as the single broad-based and uniform rate applicable to all managed care organization services subject to assessment, as such term is defined in said section 64 of said chapter 118E. Upon converting the health care related assessment on managed care organization services to a broad-based and

1051 uniform assessment applicable to all managed care services subject to assessment, as such term
1052 is defined in said section 64 of said chapter 118E, the initial managed care organization services
1053 assessment rate shall be equal to the rate that had been applicable to the tax group containing
1054 commercial managed care services immediately preceding the implementation of the broad-
1055 based and uniform application of the assessment. The managed care organization services
1056 assessment rate for each calendar year, beginning the first January 1 following the conversion of
1057 the health care related assessment on managed care organization services to a broad-based and
1058 uniform assessment, shall be broad-based and uniform across all managed care services subject
1059 to assessment and shall continue to be implemented in a manner consistent with 42 CFR 433.68.

1060 SECTION 90. Notwithstanding any general or special law to the contrary, section 18 of
1061 chapter 28 of the acts of 2023 shall not be in effect for the purposes of establishing the annual
1062 spending threshold set pursuant to subsection (f) of section 2BBBBBB of chapter 29 of the
1063 General Laws for the fiscal year ending June 30, 2027.

1064 SECTION 91. Notwithstanding any general or special law to the contrary, to the extent
1065 that immunization recommendations and requirements established in the commonwealth are
1066 conditioned upon alignment with the recommendations made by the Advisory Committee on
1067 Immunization Practices of the federal Centers for Disease Control and Prevention, the
1068 commissioner of public health shall review said recommendations and requirements established
1069 in the commonwealth and shall, in consultation with the vaccine program advisory council
1070 established in section 24N of chapter 111 of the General Laws, establish alternative standards as
1071 the commissioner may deem necessary to assure the maintenance of public health and the
1072 prevention of disease in the commonwealth.

1073 SECTION 92. Notwithstanding any general or special law to the contrary, there shall be a
1074 moratorium on the destruction of hospital records pursuant to section 36 of chapter 123 of the
1075 General Laws until such time as the department of mental health promulgates regulations
1076 defining a public notice process for the destruction of such records, as required under said
1077 section 36 of said chapter 123.

1078 SECTION 93. Notwithstanding any general or special law to the contrary, there shall be a
1079 moratorium on the destruction of hospital records pursuant to section 17 of chapter 123B of the
1080 General Laws until such time as the department of developmental services promulgates
1081 regulations defining a public notice process for the destruction of such records, as required under
1082 said section 17 of said chapter 123B.

1083 SECTION 94. Notwithstanding any general or special law to the contrary, at the direction
1084 of the secretary of administration and finance, the comptroller shall make tax revenue collected
1085 from capital gains income above the threshold established in section 5G of chapter 29 of the
1086 General Laws in fiscal year 2025 available to the General Fund in the amount necessary to
1087 eliminate any deficits in the budgetary funds pursuant to section 5C of said chapter 29. After
1088 satisfying the previous provision, the comptroller shall transfer any remaining excess capital
1089 gains income as follows: (i) 85 per cent to the Deficiency Reserve Fund established in section
1090 2MMMMMM of chapter 29 of the General Laws; (ii) 5 per cent to the Commonwealth's Pension
1091 Liability Fund established in paragraph (e) of subdivision (8) of section 22 of chapter 32 of the
1092 General Laws; (iii) 5 per cent to the State Retiree Benefits Trust Fund established in section 24
1093 of chapter 32A of the General Laws; and (iv) 5 per cent to the Commonwealth Stabilization Fund
1094 established in section 2H of chapter 29 of the General Laws..

1095 SECTION 95. Notwithstanding any general or special law to the contrary, in fiscal year
1096 2025, the comptroller shall transfer \$10,000,000 from the General Fund to the Massachusetts
1097 Life Sciences Center established in section 3 of chapter 23I of the General Laws for
1098 programming and operations that advance efforts related to life sciences and spur economic
1099 growth in the commonwealth.

1100 SECTION 96. Notwithstanding any general or special law to the contrary, in fiscal year
1101 2025, the comptroller shall transfer \$100,000,000 from income surtax revenue, as defined by
1102 subsection (a) of section 2BBBBBB of chapter 29 of the General Laws, to the Public Higher
1103 Education Student Support Fund established in section 2NNNNNN of chapter 29 of the General
1104 Laws.

1105 SECTION 97. Notwithstanding any general or special law to the contrary, the secretary
1106 of health and human services shall seek all required federal approvals the secretary deems
1107 necessary to implement sections 7, 8, 9, 23, 26, 27 and 28, including any required waivers under
1108 42 C.F.R. 433.68 necessary to implement the updates to the hospital assessment described in
1109 section 67 of chapter 118E of the General Laws. If, after having received any required federal
1110 approval necessary to implement said sections 7, 8, 9, 23, 26, 27 and 28, such approval is
1111 withdrawn or is otherwise not in effect or if the secretary determines that a change in federal law
1112 or regulations or the administration of any such federal law or regulation requires a modification
1113 to the hospital assessment described in said section 67 of said chapter 118E or to the
1114 implementation of the Health Safety Net Trust Fund established in section 66 of said chapter
1115 118E, the Non-Acute Care Hospital Reimbursement Trust Fund established in section 2WWWW
1116 of chapter 29 of the General Laws, the Safety Net Provider Trust Fund established in section
1117 2AAAAA of said chapter 29, the Hospital Investment and Performance Trust Fund established in

1118 section 2TTTTT of said chapter 29 or the Population Health Investment Trust Fund established
1119 in section 2UUUUU of said chapter 29, the secretary shall provide written notification to the
1120 joint committee on health care financing and the house and senate committees on ways and
1121 means and shall collaborate with Massachusetts Health and Hospital Association, Inc. to develop
1122 and consult on the implementation of alternatives.

1123 Not later than February 15, 2026, and annually thereafter, the secretary shall report to the
1124 joint committee on health care financing and the house and senate committees on ways and
1125 means: (i) the amount of the assessment made and collected from each hospital pursuant to said
1126 section 67 of said chapter 118E; and (ii) the amounts transferred to, deposited in, expended from
1127 and transferred from the Hospital Investment and Performance Trust Fund established in said
1128 section 2TTTTT of said chapter 29 and the Population Health Investment Trust Fund established
1129 in said section 2UUUUU of said chapter 29.

1130 SECTION 98. Notwithstanding any general or special law to the contrary, the
1131 comptroller, at the direction of the secretary of administration and finance, shall transfer in both
1132 fiscal year 2026 and 2027 \$50,000,000 each such fiscal year from the Commonwealth Care Trust
1133 Fund established in section 2000 of chapter 29 of the General Laws to the Health Safety Net
1134 Trust Fund established in section 66 of chapter 118E of the General Laws; provided, however,
1135 that such transfers shall be in addition to any other transfers from said Commonwealth Care
1136 Trust Fund to said Health Safety Net Trust Fund required in fiscal years 2026 or 2027; provided
1137 further, that such funds must be used first to reduce the shortfall, as described in subsection (b)
1138 of section 69 of said chapter 118E, for health safety net fiscal years 2026 and 2027, and that any
1139 remaining funds may be used to reduce the shortfall in any other open health safety net fiscal
1140 year; and provided further, that the amount equal to any federal financial participation revenues

1141 claimed and received by the commonwealth for eligible expenditures made from said Health
1142 Safety Net Trust Fund with these funds transferred from said Commonwealth Care Trust Fund
1143 shall be credited to said Health Safety Net Trust Fund.

1144 SECTION 99. On or before November 30, 2025, the secretary of administration and
1145 finance, in consultation with the executive office of health and human services, shall estimate the
1146 amount of federal reimbursements claimed or anticipated to be claimed but not yet received in
1147 connection with costs incurred or balances designated in fiscal year 2025 from chapter 33 of the
1148 acts of 2025. For the purposes of certifying the amount of the consolidated net surplus in the
1149 budgetary funds at the close of fiscal year 2025 pursuant to section 5C of chapter 29 of the
1150 General Laws, the comptroller shall record the estimates for each budgetary fund made pursuant
1151 to this section as statutory receivables in fiscal year 2025.

1152 SECTION 100. Notwithstanding any general or special law to the contrary, for fiscal year
1153 2025, all abandoned property net revenue, as defined by section 5H of chapter 29 of the General
1154 Laws, shall remain in the General Fund.

1155 SECTION 101. (a) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the
1156 General Laws or any other general or special law to the contrary, the commissioner of capital
1157 asset management and maintenance, in consultation with the court administrator of the trial court
1158 of the commonwealth, may convey certain adjacent parcels of land in the city of Framingham
1159 acquired for the purpose of erecting a building for the first district court of southern Middlesex
1160 for nominal consideration to the city of Framingham; provided, however, that the commissioner
1161 shall not convey said parcels until: (i) the completion of a regional justice center at 121 Union
1162 avenue in the city of Framingham; and (ii) a determination by the commissioner, in consultation

with the court administrator, that the parcels are surplus to the needs of the trial court. The parcels are located at 600 and 602 Concord street in the city of Framingham and are further described in deeds recorded in the Middlesex southern district registry of deeds in book 7816, page 107 and book 9859, page 328. The parcels shall be conveyed by deed without warranties or representations by the commonwealth and without restrictions on use or future conveyance by the city. The conveyance shall be subject to such additional conditions and restrictions as the commissioner, in consultation with the court administrator, may determine. The commissioner may, in consultation with the court administrator, determine the exact boundaries of the parcels prior to conveyance.

(b) Notwithstanding any general or special law to the contrary, the city of Framingham shall be responsible for all costs and expenses of any transaction authorized by this section as determined by the commissioner of capital asset management and maintenance, including, but not limited to, the costs of any engineering, surveys, appraisals, title examinations, recording fees and deed preparation.

SECTION 102. The salary adjustments and other economic benefits authorized by the following collective bargaining agreements shall be effective for the purposes of section 7 of chapter 150E of the General Laws:

(1) the agreement between the University of Massachusetts and the Clerical/Technical Unit (CTU), MTA, Unit L92, effective from July 1, 2024 through June 30, 2027;

(2) the agreement between the Barnstable County Sheriff's Office (BCSO) and the Barnstable County Captain Union, National Correctional Employees Union (NCEU), Unit L152, effective from July 1, 2024 through June 30, 2027;

1185 (3) the agreement between the Berkshire County Sheriff's Office (BCSO) and the
1186 National Correctional Employees Union, Unit SB1, effective from July 1, 2024 through June 30,
1187 2027;

1188 (4) the agreement between the Barnstable County Sheriff's Office and the National
1189 Correctional Employees Union Local 150, Unit S10, effective from July 1, 2024 through June
1190 30, 2027;

1191 (5) the agreement between the Dukes County Sheriff's Office and the Massachusetts
1192 Correction Officers Federated Union (MCOFU), Unit SD1, effective from July 1, 2025 to June
1193 30, 2028;

1194 (6) the agreement between the University of Massachusetts and the Massachusetts
1195 Teachers Association/Department Chairs (DCU), Boston Campus, Unit B50, effective from July
1196 1, 2024 through June 30, 2027; and

1197 (7) the agreement between the Plymouth County Sheriff's Office and the New England
1198 Police Benevolent Association (NEPBA) Local 193, Unit SP5, effective from July 1, 2024
1199 through June 30, 2027.

1200 SECTION 103. Sections 10, 24, 25, 71, 72 and 89 shall take effect on the later of: (i) the
1201 effective date of amendments to 42 CFR 433.68 disallowing the higher taxation of Medicaid
1202 taxable units as compared to non-Medicaid taxable units; or (ii) the end of any federally
1203 established or approved transition period applicable to the health care related assessment on
1204 managed care organization services, established under section 68 of chapter 118E of the General
1205 Laws, as amended by section 130 of chapter 140 of the acts of 2024. The executive office of

1206 health and human services shall notify the clerks of the house of representatives and the senate
1207 not later than 10 days after the effective date pursuant to this section.

1208 SECTION 104. Sections 7, 8, 9, 23, 26, 27, 28 and 97, shall take effect upon the later of:
1209 (i) the date on which the secretary receives all federal approvals deemed necessary to implement
1210 said sections; or (ii) October 1, 2025.

1211 SECTION 105. Section 98 shall take effect October 1, 2025.